

Defendants' demurrer is **sustained, with leave to amend**. Defendants shall prepare the order and file and serve notice of its entry. Plaintiff has 45 days from notice of entry of order in which to file and serve an amended complaint. As with any self-represented litigant, Plaintiff may wish to consult an attorney regarding this matter.

11. 9:00 AM CASE NUMBER: C25-02858
CASE NAME: CHRISTOPHER DOUANGMALA VS. WILLIAM TURMAN
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: TURMAN, WILLIAM
TENTATIVE RULING:

Defendants United Parcel Service, Inc. and William Turman's demurrer to the first amended complaint is **overruled as to two, three and eleven, and sustained with leave to amend as to one, four, six, seven, eight and twelve**. Plaintiff may file and serve an amended complaint within 10 days of notice of entry of this order.

Plaintiff worked at UPS since 2012. (FAC ¶12.) Plaintiff worked as a business supervisor from 2017 to 2024 and his evaluations showed steady, positive performance. (FAC ¶14.)

Plaintiff alleges that in early 2025, he and his partner welcomed their first child. (FAC ¶15.) Plaintiff applied for and was granted paternity leave under CRFA from February 11, 2025, to March 3, 2025, and from April 15, 2025, to May 3, 2025. (FAC ¶16.) When Plaintiff returned to work in April 2025, he learned that UPS was shutting down his work site. (FAC ¶19.)

Plaintiff requested additional paternity leave. Plaintiff's manager, Turman, told Plaintiff "that it was not a good time for Plaintiff to take leave" and instead encouraged him to apply for jobs given the impending facility closure. (FAC ¶20.) Plaintiff still applied for additional leave and took two weeks of paternity leave. (FAC ¶¶20-21.) While on leave, Plaintiff sought alternative roles at UPS and was granted an interview. (FAC ¶¶22-23.) Plaintiff was informed that he did not get the position and was also told that he was not selected for interviews for any other business supervisor roles in the area. (FAC ¶¶23-24.) Plaintiff was referred to interview for alternative roles that were not comparable or appropriate. (FAC ¶25.)

On June 30, 2025, Plaintiff's employment was terminated. (FAC ¶26.) Plaintiff was the only supervisor in his group who was not offered a comparable position following the restructuring, despite his strong performance history. (FAC ¶27.) Every other employee at his location received another position at UPS. (FAC ¶28.) UPS is actively hiring employees for many positions, including business supervisors. (FAC ¶29.)

Defendants demur to the following causes of action based upon the failure to state sufficient facts to constitute a cause of action and on uncertainty, Code of Civil Procedure section 430.10(e) and (f): (1) interference with CFRA, (2) retaliation under CFRA, (3) FEHA sex discrimination, (4) FEHA

retaliation, (6) unpaid wages, (7) waiting time penalties, (8) inaccurate wage statements, (11) breach of contract and (12) breach of the covenant of good faith and fair dealing.

Interference with CFRA (C/A 1)

Defendants argue that the CFRA interference requires showing that the employer denied the employee's entitlement to CFRA qualifying leave. (*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 250.)

Plaintiff argues that interference is not limited to a denial of a leave requests, but also includes an employer's failure to reinstate an employee to the same or a comparable position at the end of CFRA leave without an independent reason for termination, and using the taking of leave as a negative factor in employment decisions violates CFRA. Plaintiff relies on *Richey v. AutoNation, Inc.* (2015) 60 Cal.4th 909, 920, Gov. Code § 12945.2; Cal. Code Regs., tit. 2, § 11089 and CACI No. 2600. However, Plaintiff's argument focuses mostly on retaliation under CFRA as opposed to interference with CFRA leave.

"CFRA has two principal components: a right to leave of up to 12 weeks in any 12-month period to care for a family member or for the employee's own medical condition (Gov. Code, § 12945.2, subds. (a), (c)(2)(A)), and a right to reinstatement in the same, or a comparable, position at the end of the leave (Gov. Code, § 12945.2, subd. (a))." (*Richey v. AutoNation, Inc.* (2015) 60 Cal.4th 909, 919.) " 'Interference' claims prevent employers from wrongly interfering with employees' approved leaves of absence, and 'retaliation' or 'discrimination' claims prevent employers from terminating or otherwise taking action against employees because they exercise those rights. [Citations.]" (*Id.* at 920.)

To state a claim for CFRA interference, a plaintiff must allege (1) entitlement to CFRA leave and (2) the employer's interference with or denial of those rights. (*Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 601.) "CFRA makes it unlawful for an employer 'to interfere with, restrain, or deny the exercise of, or the attempt to exercise, any right' provided by CFRA. ([Gov. Code] § 12945.2, subd. (t).)" (*Moore, supra*, 248 Cal.App.4th at 250.)

Here, the facts alleged show that Plaintiff was given CFRA leave when he requested it. The only facts addressing interference are that Plaintiff's supervisor told Plaintiff "that it was not a good time for PLAINTIFF to take leave; instead, PLAINTIFF should be focused on fighting for a job." (FAC ¶120.) Plaintiff cites no authority where a supervisor telling an employee that it was not a good time to take leave because the worksite was closing, and yet leave was still granted without further pushback, is sufficient to state an interference claim.

The demurrer to cause of action one is sustained with leave to amend.

Retaliation under CFRA (C/A 2)

“The elements of a cause of action for retaliation in violation of CFRA are ““(1) the defendant was an employer covered by CFRA; (2) the plaintiff was an employee eligible to take CFRA [leave]; (3) the plaintiff exercised her right to take leave for a qualifying CFRA purpose; and (4) the plaintiff suffered an adverse employment action, such as termination, fine, or suspension, because of her exercise of her right to CFRA [leave].” [Citation.]” (*Moore, supra*, 248 Cal.App.4th at 248.)

Defendants argue that Plaintiff has not alleged facts showing he suffered an adverse employment action because he took CFRA leave. Plaintiff disagrees.

The facts alleged show that Plaintiff took CFRA leave at the same time his worksite was closing and his employment was terminated within weeks of returning from CFRA leave. Further, Plaintiff alleges that he was the only one from his worksite not given another job at UPS and that UPS has openings for business supervisors, which was Plaintiff’s last position at UPS. These facts are sufficient to state a retaliation claim.

The demurrer to cause of action two is overruled.

Sex Discrimination (C/A 3)

To state a discrimination claim under FEHA, the plaintiff must alleged “that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive. [Citations.]” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355; see also, *Soria, supra*, 5 Cal.App.5th at 583.)

Defendant argues that Plaintiff, a male, cannot allege a claim for sex discrimination and has not sufficiently stated a claim for familial status discrimination.

Plaintiff points out that FEHA sex discrimination and harassment includes where a person does not match a sex stereotype and is consequently discriminated or harassed because of it. (*Nichols v. Azteca Rest. Enters.* (9th Cir. 2001) 256 F.3d 864, 874.) In *Nichols*, the court held that a man could state a claim for sex harassment because he alleges he was harassed for being too effeminate and not conforming to a male stereotype. (*Ibid.*)

Here, Plaintiff alleges that once UPS was informed that he was expecting a child, the UPS managers withdrew support for Plaintiff and eventually terminated him because of his family responsibilities, a perceived failure to comply with masculine ideal worker norms. (FAC ¶150.) In addition, it is alleged that Plaintiff took CFRA leave several times and was the only employee not given another job within UPS when their location closed.

Although these allegations suggest the attempt to state a claim under familial status, Plaintiff has clarified that his theory is sex discrimination based on the failure to conform to gender

stereotypes. The Court finds that these allegations are sufficient to state a claim for sex discrimination. It is alleged that Defendants treated Plaintiff differently after he, a male, took CFRA leave to care for his child, which was against the masculine norm.

The demurrer to cause of action three is overruled.

Retaliation under FEHA (C/A 4)

To plead a cause of action for retaliation under the FEHA, Plaintiff must plead sufficient facts to “show (1) he or she engaged in a ‘protected activity,’ (2) the employer subjected the employee to an adverse employment action, and (3) a causal link between the protected activity and the employer’s action.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

Defendants argue that the FEHA retaliation claim is duplicative of the CFRA retaliation claim. The claims may be based upon the same facts, but CFRA and FEHA retaliation claims are distinct theories.

Defendants also argue that seeking and taking parental leave is not a protected activity under Government Code section 12940. Plaintiff disagrees, citing to Government Code section 12945.2.

Protected activity in a FEHA retaliation claim includes, where the employee opposes conduct that is unlawful or where the employee reasonably believes the conduct is unlawful. (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042; Gov. Code §12940(h).) It is also unlawful to retaliate against a person for requesting an accommodation for religious practice or disability, regardless of whether the request was granted. (Gov. Code, § 12940(l)(4) [religious practice], (m)(2) [disability].)

Government Code section 12945.2 provides protections under CFRA. But Plaintiff has not provided legal authority, or quoted language from the relevant statutes, that shows requesting and taking CFRA leave constitutes a protected activity under FEHA. Nor has Plaintiff alleged facts showing that he was unlawfully denied CFRA leave (or another unlawful action by Defendants) and opposed that conduct by making a complaint.

The Court finds that Plaintiff has not yet alleged a claim for retaliation under FEHA. The demurrer to cause of action four is sustained with leave to amend.

Unpaid Wages, Waiting Time Penalties, Inaccurate Wage Statements (C/A 6 to 8)

Defendants demur to the wage claims as alleged against Turman. Defendants argue that Turman was Plaintiff’s supervisor and there are no allegations that he was involved in the unpaid or inaccurate wage statements alleged here.

Labor Code section 558.1 makes certain person acting on behalf of an employer liable for wage and hour violations under the Labor Code, including sections 203, 226, 226.7, 1193.6, 1194, or

2802. (Lab Code § 558.1(a).) “[T]he term ‘other person acting on behalf of an employer’ is limited to a natural person who is an owner, director, officer, or managing agent of the employer, and the term ‘managing agent’ has the same meaning as in subdivision (b) of Section 3294 of the Civil Code.” (Lab Code § 558.1(b).)

To be held liable under section 558.1 a person “must either have been personally involved in the purported violation of one or more of the enumerated provisions; or, absent such personal involvement, had sufficient participation in the activities of the employer, including, for example, over those responsible for the alleged wage and hour violations, such that the ‘owner’ may be deemed to have contributed to, and thus for purposes of this statute, ‘cause[d]’ a violation.” (*Usher v. White* (2021) 64 Cal.App.5th 883, 896-897.) “[T]o be held personally liable he or she must have had some oversight of the company’s operations or some influence on corporate policy that resulted in Labor Code violations.” (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal.App.5th 44, 59.)

Defendants argue that Turman is alleged to have been Plaintiff’s manager and determined “Plaintiff’s schedule, approved his payroll, and made decisions regarding Plaintiff’s working conditions.” (FAC ¶4.) Defendant points out that there are no allegations regarding whether Turman was involved in unpaid or inaccurate wages.

Plaintiff argues that in addition to the allegation that Turman determined Plaintiff’s schedule and approved payroll, Plaintiff alleged that UPS gave Turman broad authority. (FAC ¶4.)

Here, the unpaid wage claim alleges that UPS failed to pay Plaintiff three peak days earned for working holidays in 2024, three weeks of accrued vacation pay, and five discretionary days upon termination. (FAC ¶70.) Further, Plaintiff alleges that these violations gave rise to waiting-time penalties and these amounts were omitted from Plaintiff’s wage statements.

The Court finds that Plaintiff has not sufficiently alleged a claim against Turman for the Labor Code violations. Plaintiff has not alleged facts showing that Turman was actually involved in any of the alleged violations. The demurrer to these claims is sustained with leave to amend.

Breach of Contract (C/A 11)

Defendant argues that there is no breach of contract claim here because the employment was at will, and the alleged Leave Guidelines attached to the complaint do not defeat at-will employment. (*Tomlinson v. Qualcomm* (2002) 97 Cal.App.4th 934, 937.)

Under “Labor Code section 2922, if the parties reach no express or implied agreement to the contrary, the relationship is terminable at any time without cause. But when the parties have enforceable expectations concerning either the term of employment or the grounds or manner of termination, Labor Code section 2922 does not diminish the force of such contractual or legal obligations.” (*Foley v. Interactive Data Corp.* (1988) 47 Cal.3d 654, 680.) When determining if there is a

contractual right, courts look to the express terms of an employment agreement, but also look at “ “the personnel policies or practices of the employer, the employee’s longevity of service, actions or communications by the employer reflecting assurances of continued employment, and the practices of the industry in which the employee is engaged.” [Citations.]” (*Ibid.*) “The principle that implied employment contract terms may arise from the employer’s official and unofficial policies and practices is one that long predates *Foley*, and has not been confined to the area of wrongful termination.” (*Scott v. Pacific Gas & Electric Co.* (1995) 11 Cal.4th 454, 464.)

Here, Plaintiff alleges that UPS’s Employee Handbook and applicable policies provided for job-protected paternity leave consistent with federal and state law. (FAC ¶100.) “By continuing to employ PLAINTIFF under these policies and acknowledging his leave request, UPS entered into a binding agreement to provide him with protected leave and reinstatement to a comparable position upon his return.” (FAC¶ 101.) Plaintiff alleges that UPS breached this agreement when it failed to reinstate Plaintiff to a business supervisor role after his leave and instead terminated his employment. (FAC ¶102.)

In *Tomlinson*, an employee went on approved FMLA leave and was told that you will be returned to your position or an equivalent job if you return to work before the expiration of the leave. (*Tomlinson, supra*, 97 Cal.App.4th at 938-939.) Plaintiff’s employment was then terminated as part of a company wide layoff. Plaintiff argued that the employer’s family leave policy created an implied-in-fact agreement of continued employment. (*Id.* at 944.) However, Plaintiff signed an agreement confirming that her employment was at-will. (*Id.* at 944-45.) The court held that the expressed at-will language defeated the implied in fact argument. (*Id.* at 944-946.)

Tomlinson is distinguishable as here Plaintiff has not alleged an express at-will language that conflicts with the language in the employee handbook. Further, *Tomlinson* was decided at trial when the trial court granted a nonsuit motion. Here, the Court is reviewing only Plaintiff’s allegations.

The Court finds that Plaintiff has alleged an implied-in-fact contract that Plaintiff would not be terminated while on CFRA leave. The demurrer to cause of action eleven is overruled.

Breach of the Covenant of Good Faith and Fair Dealing (C/A 12)

Defendant argues that the covenant of good faith and fair dealing claim fails for the reasons stated in the breach of contract claim and because it is superfluous of that claim.

Where a claim for breach of the implied covenant of good faith and fair dealing does “not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated.” (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395.)

Plaintiff argues that the covenant of good faith and fair dealing claim includes allegations that Defendants acted arbitrarily and steered him towards inappropriate roles that frustrated the benefits agreement beyond the breach itself.

The Court finds that as alleged the covenant of good faith and fair dealing claim is superfluous of the breach of contract claim. The claim that Defendants breached their agreement with Plaintiff arbitrarily or in bad faith does not add anything to this claim, which is a contract claim. As the California Supreme Court has explained “To the extent [plaintiff’s] implied covenant cause of action seeks to impose limits on [defendant’s] termination rights *beyond* those to which the parties actually agreed, the claim is invalid. To the extent the implied covenant claim seeks simply to invoke terms to which the parties *did* agree, it is superfluous. [Plaintiff’s] remedy, if any, for [defendant’s] alleged violation of its personnel policies depends on proof that they were contract terms to which the parties actually agreed. The trial court thus properly dismissed the implied covenant cause of action.” (*Guz*, *supra*, 24 Cal.4th 317, 352-353.)

The demurrer to cause of action twelve is sustained with leave to amend.

Uncertainty

Defendants also demurred on uncertainty. Defendants did not address uncertainty in their moving papers. Further, the complaint is not so uncertain that Defendants cannot respond to it. The demurrer for uncertainty is overruled.

12. 9:00 AM CASE NUMBER: C25-02877
CASE NAME: STEPHEN JUROVICH VS. BILL BRANDT FORD, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: BILL BRANDT FORD, INC.
TENTATIVE RULING:

Before the Court is a petition/motion to compel arbitration, dismiss putative class claims, and stay proceedings filed by defendant Bill Brandt Ford, Inc.. For the reasons set forth, the motion is **granted** on the terms set forth below.

Background

Plaintiff Stephen Jurovich was employed by defendant Bill Brandt Ford, Inc. from February or March 2022 through August 2025. (Brandt Decl. ¶ 2; Jurovich Decl. ¶ 2.) Plaintiff filed a putative class action complaint against Brand Ford on behalf of himself and others similarly situated on October 3, 2025. He alleges six causes of action for various wage and hour violations under the Labor Code and the applicable Industrial Wage Orders and a seventh cause of action for violation of the Unfair Competition Law, Business and Professions Code section 17200, *et seq.* ("UCL"). Defendant seeks to compel Plaintiff to arbitrate his claims pursuant to the Mutual Arbitration Agreement executed by Jurovich dated April 13, 2023 (the "Arbitration Agreement"). (Petn. Exh. A.)

Procedure and Burden of Proof on Motion to Compel Arbitration